

Attachment D

HHS Template and Instructions for a General Services Administration Federal Supply Schedule Limited Source Justification

Completion Instructions: HHS has established a standard template for preparation of a Limited Source Justification (LSJ). For Federal Supply Schedule (FSS) acquisitions over the Simplified Acquisition threshold, Operating Divisions (OPDIVs) shall prepare the template in accordance with these completion instructions. *(NOTE: The Project Officer (PO) has responsibility for completing all of the information items included in the template, with any necessary assistance from the cognizant Contracting Officer (CO) and Contract Specialist (CS) -- especially for Items 3.(b), 4., 5., 6., and 8.(b) listed below.*

The instructions for preparing an LSJ are specified in “red” and should be deleted prior to processing the document for review and approval. Also, do not include the completion instructions in the completed document.

A completed LSJ must contain all of the applicable bolded headings in the order specified. Place the required information directly next to, or under, the applicable heading. If a heading does not apply to a specific LSJ, indicate “not applicable” (N/A) next to it. Reference and attach any additional information necessary to support the LSJ.

Limited Source Justification

“Source Selection Information – see FAR 2.101 and 3.104”

a. Identification of the agency and contracting activity

b. Federal agency and contracting activity. HHS. NIH

c. Sponsoring organization. CC/RADIS

d. Project Officer Information.

- **Project Officer: Ronald L. Levin**
- **Mailing address.** 10/1C543, NIH, 10 Center Drive, Bethesda, MD 20892
- **E-mail address.** rll@nih.gov
- **Telephone number.** 301-496-4454

2. Nature and/or description of the action being approved.

a. Acquisition purpose and objectives. This purchase is to procure a set of replacement high-availability VMware ESXi Servers for the NIH CC RADIS.

b. Project background.

The mission of the National Institutes of Health (NIH) is to uncover new knowledge that will lead to better health for everyone. The NIH accomplishes that mission by conducting research in its own laboratories; supporting the research of non-Federal scientists in universities, medical schools, hospitals, and research institutions throughout the country and abroad; helping in the training of research investigators; and fostering communication of biomedical information.

The NIH Clinical Center (CC) is a 234-bed federally funded, biomedical research hospital located on the NIH campus in Bethesda, Maryland. The Clinical Center is the delivery setting for all NIH intramural clinical research protocols. The hospital complex consists of two main facilities that are connected to each other by “bridges”. The original 14-story building is 2.5 million square feet and continues to house the clinical laboratories, imaging sciences, surgical suites, and several outpatient clinics. The new 870,000 square foot facility houses inpatient units and day hospitals. The Clinical Center accounts for about half of all NIH-funded clinical research beds in the United States and accommodates about 7,000 inpatient and 70,000 outpatient visits a year. Patients are admitted to the NIH Clinical Center from all over the world for the sole purpose of participating in a clinical research protocol.

3. Description of the supplies or services required to meet the agency’s needs (including the estimated value).

a. Project title. VMware ESXi Replacement Servers

b. Project description.

This purchase is to procure a replacement set of high-availability VMware ESXi servers for the NIH CC RADIS. This new system will be loaded with the same software packages from VMware (e.g. ESXi) and operate in exactly the same manner as our current set of VMware ESXi servers located on the NIH Bethesda campus. The “virtual server machines” on this new system will be loaded with the same software packages from Fuji/TeraMedica (e.g. SynapseVNA, Synapse Mobility) and operate in the same manner as our current set of servers. All new virtual machines will be bound to the NIH domain and will be configured with the requisite security packages used by the NIH Clinical Center.

These replacement VMware ESXi servers are required to meet the current set of IT security requirements specified by CC DCRI and CIT. Our current set of VMware ESXi servers do not meet these updated set of IT security requirements.

- **Requirement type.**

- ☐ Support services (non-research & development)
- ☒ Supplies/equipment
- ☒ Information technology (IT)
- ☐ Other (specify): _____

- **Type of action.**

- ☐ New requirement
- ☒ Follow-on
- ☐ Other (specify): _____

- **Proposed contract/order type.**

- ☒ Firm-fixed-price
- ☐ Time and materials
- ☐ Indefinite delivery (specify whether indefinite quantity, definite quantity, or requirements): _____
- ☐ Other (specify): _____

- **Acquisition identification number.**

POTS 25-xxxxxx

c. Total estimated dollar value and performance/delivery period.

Estimated dollar value \$55,000

Delivery by Fall of 2025

4. Identification of the justification rationale [see 8.405-6(a) and (b)] and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

a. Acquisition authority.

- ☐ This acquisition is conducted under the authority of the Multiple Award Schedule Program. Consideration of schedule contractors will be restricted to fewer than the number required by Federal Acquisition Regulation (FAR) 8.405-6(a)(1) [see FAR 8.401, 8.405-1, 8.405-2, 8.405-6(b), and 8.405-6(g)(1)] (i.e., fewer than three FSS contractors).

☒ This acquisition is conducted under the authority of the Multiple Award Schedule Program. Consideration of schedule contractors will be restricted only to the item peculiar to one manufacturer as provided in FAR 8.405-6(a)(2) [see FAR 8.401 and 8.405-6(g)(1)].

b. Demonstration of the proposed contractor(s) unique qualifications to provide the required supply or service.

- Name and address of the proposed contractor(s).

Dell Computer

PCItec

Alvarez

ITSolutions

FedTek

- Nature of the acquisition and proposed contractor(s) unique qualifications.

Ability to supply Dell servers and workstations

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4. Determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).

Currently, RADIS of the NIH CC, has approximately 24 Dell servers. These systems not only have been extremely reliable over the past 10-15 years but they satisfy all of NIH security requirements including being able to be equipped with self-encrypting disks. These systems are also equipped with iDRACs which permit not only the remote monitoring and configuration of the servers but also operating system installation and power cycling of the servers. This is a requirement for the systems we are proposing to purchase.

We plan to purchase the specified servers from the vendor proposing the lowest cost.

5. Description of the market research conducted among schedule holders and the results, or a statement of the reasons market research was not conducted.

Several other vendors have been contacted and several can provide the specified Dell servers and storage array.

6. Any other facts supporting the justification.

None

8. Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

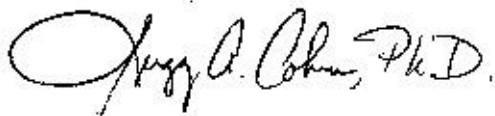
- a. Removal of barriers to competition.

We probably plan to request purchase of addition Dell servers and workstation through the competitive bidding process.

- b. Listing of sources, if any, that expressed an interest, in writing, in the acquisition.

9. Program office certification.

This is to certify that the portions of this justification that have been developed by the undersigned program office personnel, including supporting information and/or data verifying the Government's minimum needs or requirements, or other rationale for limited sources, are accurate and complete.

Official	Name & Title	Signature	Date
Project Officer	Ronald L. Levin		04/01/2025
Project Officer's Immediate Supervisor			04/01/2025

Head of the Sponsoring Program Office			
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10. Contracting Officer Certification.

This is to certify that the justification for the proposed acquisition has been reviewed and that to the best of my knowledge and belief the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer			

11. Chief of the Contracting Office and Head of the Contracting Activity signature(s).

Official	Name & Title	Signature	Date
Chief of the Contracting Office			
Head of the Contracting Activity			

12. Competition Advocate signature. The designated OPDIV Competition Advocate (CA), upon acceptance of the rationale provided in the LSJ, shall complete the information required below and sign in the block provided as the approving official for any LSJ over \$550,000 but not exceeding \$57 million¹. However, if the CA does not meet the requirements of FAR 8.405-6(h)(3)(ii) for an LSJ over \$11.5 million, but not exceeding \$57 million, an individual other than the CA shall exercise the approval authority.

The signature of the CA, or that of an individual meeting FAR 8.405-6(h)(3)(ii) requirements for an LSJ over \$11.5 million, but not exceeding \$57 million, shall

¹ This approval authority is applicable to the following dollar ranges cited in the FAR, specifically: (i) over \$550,000, but not exceeding \$11.5 million; and (ii) over \$11.5 million, but not exceeding \$57 million – see FAR 8.405-6(h)(2) and (3). See HHSAR 308.405(h)(2) and (3) for additional information regarding this approval authority, including when the CA does not meet the requirements of FAR 8.405-6(h)(3)(ii). These dollar ranges are current as of the date of issuance of interim acquisition policy memorandum No. 2008-03, but are subject to change.

serve as concurrence on any LSJ over \$57 million that requires the approval of the HHS Senior Procurement Executive (SPE).

Official	Name & Title	Signature	Date
Competition Advocate			

13. **HHS Senior Procurement Executive signature.** The HHS SPE, upon acceptance of the rationale provided in the LSJ, shall complete the information required below and sign in the block provided as the approving official for any LSJ exceeding \$57 million².

Official	Name & Title	Signature	Date
HHS Senior Procurement Executive			

²This dollar range is current as of the date of issuance of interim acquisition policy memorandum No. 2008-03, but is subject to change – see FAR 8.405-6(h)(4). See HHSAR 308.405-6(h)(4) for additional information regarding SPE approval of an LSJ in this dollar range.